

Smt. Mamatha W/O Kannakeshwara Bennura vs Kannakeshwara S/O Muregeppa Bennura on 31 August, 2023

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NC: 2023:KHC-D:10124
CP No. 100110 of 2023

IN THE HIGH COURT OF KARNATAKA

DHARWAD BENCH

DATED THIS THE 31ST DAY OF AUGUST, 2023

BEFORE

THE HON'BLE MR JUSTICE C.M. POONACHA
CIVIL PETITION NO. 100110 OF 2023

BETWEEN:

SMT. MAMATHA W/O KANNAKESHWARA BENNURA
AGE: 31 YEARS, OCC: HOUSE WIFE,
R/O: BENAKANAHALLI VILLAGE,
UJJANI POST, KOTTURU (TQ)
VIJAYANAGARA (DIST) PIN CODE-583134.

...PETITIONER

(BY SRI. BASAVANA GOUD T., ADVOCATE)

Digitally

AND:

signed by
SHIVAKUMAR

SHIVAKUMAR HIREMATH
HIREMATH

Date:
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KANNAKESHWARA S/O MUREGEPPA BENNURA,
AGE: 41 YEARS, OCC: COMPUTOR OPERATOR,
TOWN MUNICIPALITY HAVERI, ON CONTRACT BASIS,
R/O KARAJAGI, VILLAGE,
HAVERI TALUK AND DISTRICT PINCODE-585 217.

...RESPONDENT

(BY SRI. B. M. PATIL, ADVOCATE FOR SOLE RESPONDENT)

THIS CIVIL PETITION IS FILED UNDER SECTION 24 OF CPC, 1908, PRAYING TO TRANSFER THE MC NO. 52/2023 FILED BY THE RESPONDENT HEREIN, PENDING ON THE FILE OF THE PRINCIPAL JUDGE, FAMILY COURT, HAVERI, TO THE LEANED SENIOR CIVIL JUDGE AND JUDICIAL MAGISTRATE FIRST CLASS, KUDLIGI FOR ADJUDICATION AND PASS SUCH OTHER AND SUITABLE ORDER OR

ORDERS AS THIS HONBLE COURT DEEMS FIT AND PROPER, WHICH
WOULD MEET THE ENDS OF JUSTICE AND EQUITY.

THIS CIVIL PETITION, COMING ON FOR ADMISSION, THIS
DAY, THE COURT MADE THE FOLLOWING:

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ORDER

The present petition is filed under Section 24 of Code of Civil Procedure, 1908 (hereinafter referred to as 'CPC',) seeking transfer of M.C.No.52/2023 pending on the file of Prl. Judge, Family Court, Haveri, to the Court of the Senior Civil Judge and JMFC, Kudligi.

2. The necessary facts leading to the present petition are that the marriage between the parties was solemnized on 30.05.2013 and both the parties lived together in their matrimonial home at the residence of the husband. Two children were born to the parties from the said wedlock. Due to various reasons, from March 2017, the parties have been living separately. The petitioner/wife is presently living along with her parents at the address mentioned in the cause title.

3. The respondent/husband has filed M.C.No.52/2023 under Section 13(1)(ia)) and (ib) of the Hindu Marriage Act, 1955 which is pending before the Prl.

NC: 2023:KHC-D:10124 Judge, Family Court, Haveri. The wife has filed CrI.Misc.No.443/2023 under Section 125 of Code of Criminal Procedure, 1976 seeking for maintenance which is pending on the file of the Civil Judge, JMFC, Kudligi. Hence, the wife has filed the present petition.

4. It is the contention of the learned counsel for petitioner that the wife is staying along their two children at the residence of her parents. That she has no independent source of income and she is completely dependent on her parents for the livelihood of herself as well as the children. He further submits that the distance between the place of residence of the petitioner to Haveri is about 150 km and it would be very difficult for her to travel to Haveri for the purpose of contesting the proceedings instituted by the husband.

5. Per contra, the respondent opposes the grant of any relief.

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6. I have considered submissions made and have perused the material available on record.

7. The essential facts are undisputed inasmuch as the matrimonial relation of the parties, children born to the parties from their wedlock, the fact that the parties are living separately and the

litigations instituted by both the parties.

8. It is forthcoming that the wife has no independent source of income and that she is staying along with her parents and she is dependent on them for the livelihood of herself and their children.

9. It is the contention of the petitioner that the husband is working as Computer Operator in Haveri Municipality and getting monthly salary of 30,000/- and he is having 4 acres of land having income of 2,00,000/- from the agricultural operations. Hence, it is clear that the husband is gainfully employed and has an independent source of income.

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10. Although, the husband will put to some hardship if the proceedings instituted by him are transferred as sought by the petitioner, in view of the settled proposition of law that the convenience of the wife will have to be given precedence to while deciding cases of transfer of matrimonial proceedings and having regard to the fact situation as noticed above, it is just and expedient that the relief sought for in the present petition be granted.

11. In view of the aforementioned, I pass the following:

ORDER

i) The petition is allowed;

ii) M.C.No.52/2023 pending on the file of Prl.

Judge, Family Court, Haveri, shall stand transferred to the Court of the Senior Civil Judge and JMFC, Kudligi;

iii) Both the parties shall appear before the transferee Court on 21.09.2023 without the NC: 2023:KHC-D:10124 requirement of any further notice being issued in this regard;

iv) The transferee Court, upon transfer, shall proceed further in accordance with law;

v) All contentions of the parties are left open.

(Sd/-) JUDGE Naa